

HOUSE No. 2996

The Commonwealth of Massachusetts

PRESENTED BY:

Steven George Xiarhos

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the retirement benefits of Virginia E. Cummings.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>1/13/2025</i>

HOUSE No. 2996

By Representative Xiarhos of Barnstable, a petition (accompanied by bill, House, No. 2996) of Steven George Xiarhos that the State Board of Retirement be directed to grant an increased accidental disability retirement allowance to Lieutenant Virginia E. Cummings of the town of Bourne. Public Service.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2686 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the retirement benefits of Virginia E. Cummings.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding section 7 of chapter 32 of the General Laws or any other
2 general or special law to the contrary, and in order to promote the public good, the State Board of
3 Retirement shall grant an increased accidental disability retirement allowance to Lieutenant
4 Virginia E. Cummings of the Town of Bourne, who as a result of injuries sustained by violence
5 of an inmate while in the performance of her duties on May 9, 2009 is permanently unable to
6 perform the essential duties of her job and incapacitated for further services as a Correction
7 Officer III. Virginia E. Cummings shall receive a yearly amount of pension of 72% of the rate of
8 compensation which would have been paid to her had she continued in service as a Correction
9 Officer III of the Department of Correction which was held by her at the time of her retirement.

10 This disability allowance shall reflect the date which she planned to retire on her 65th birthday
11 April 21, 2016.

12 SECTION 2. Upon the death of Virginia E. Cummings, leaving John P. Cummings, her
13 husband, surviving her, the State Board of Retirement shall pay to him so long as he remains
14 unmarried, an annuity of the amount of three-fourths of the amount of the pension payable to her
15 at the time of her death.

16 SECTION 3. This act shall take effect upon its passage.